

When the time for doing any act or taking any proceeding is limited by months, not expressed to be calendar months, such time is to be computed by lunar months of twenty-eight days each.

When the time for doing any act or taking any proceeding expires on a Sunday, or other day on which the offices are closed, and by reason thereof such act or proceeding cannot be done or taken on that day, such act or proceeding is, so far as regards the time of doing or taking the same, to be held to be duly done or taken, if done or taken on the day on which the offices shall next open.

1850.
V.
The Vacation.

The long vacation is to commence on the 1st day of July, and to terminate on the 2nd day of August in every year.

1850.
IX.
Time of vacation not to count in certain cases.

The time of vacation is not to be reckoned in the computation of the times appointed or allowed for the following purposes:—

1. Amending, or obtaining orders for leave to amend bills.
2. Filing or referring exceptions, or obtaining the Master's report on exceptions, in cases where the time is not limited by the order of reference.
3. Setting down demurrers or objections for want of parties.
4. Filing replications, or setting down causes under the directions under article 3 of Order XLVI.

This is copied from the English Order 14 of 1845.

On the principle *Expressio unius est exclusio alterius*, it would seem that the time of vacation does count for all proceedings except those above mentioned, which produces a somewhat anomalous result. For instance the time for answering must count, and so for want of answer a traversing note may be filed and followed up by a replication. Then the defendant would be put to a motion for leave to answer, and although vacation, if the Court should sit, the Plaintiff, for all that appears by the Orders, must appear and answer the motion or run the risk of its being granted. The time for passing publication also counts, and therefore the examination of witnesses may often be necessary in vacation; although it is generally supposed that the Court does not sit in vacation, except under circumstances of a special nature—such as to hear motions for injunctions which will not admit of delay. It

is a question
the vacati
than those

That th
ity to answ
isdiction of

An Ord
when the l

The day
curity for
til and incl
is not to b
a defendan

When a
to be enter
filed, he sh
solicitor of
self, if he

The fol
Orders of

In these
meanings l
several or
the subje
viz.—

1. W
plu
nu
2. W
fer
3. T
or
4. T
5. T

And it
of interpre

That no
ing or oth
dal or imp
and signed
which are
unless suc
delivery o

It will